

ENTITLED: “ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LOT 4, BLOCK 2, SWAN RANCH RAIL PARK THIRD FILING, AND A PORTION OF TUNDRA DRIVE, LARAMIE COUNTY, WYOMING (LOCATED AT THE SOUTHWEST CORNER OF TUNDRA DRIVE AND CLEAR CREEK PARKWAY).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Elsey Family Legacy Trust 1, owner of Lot 4, Block 2, Swan Ranch Rail Park Third Filing, Laramie County, Wyoming, have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned PUD Planned Unit Development by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

MARIAN J. ORR, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published:_____

ANNEXATION REPORT

Lot 4, Block 2, Swan Ranch Rail Park Third Filing **Annexation Summation**

CASE NUMBER: UDC-19-00006 **SUBDIVISION CODE:** SWRP03

PREPARED BY: Tawn Hillenbrand

PUBLIC HEARING: February 11, 2019 – City Council

MEETING DATES:	February 11, 2019 – City Council	1 st Reading
	February 20, 2019 – Public Service Committee	1 st Reading
	February 25, 2019 – City Council	2 nd Reading
	March 5, 2019 – Public Service Committee	2 nd Reading
	March 11, 2019 – City Council	3 rd Reading

REQUIRED DOCUMENTS: The following documents have been submitted and reviewed by staff:

- Master Application; Petition to Annex signed by property owner's; Annexation Map; Soils Report; Signed clearance from the Board of Public Utilities

RECOMMENDATION: Staff recommends approval of the annexation application.

According to Wyoming State Statute 15-1-408, annexations are effective upon the publication of the ordinance (not the recording of the annexation map); however, most City and County systems only update their maps and services upon the recording of the annexation map with the County Clerk. Therefore, instead of conditioning approval, Staff recommends that the applicants provide a recordable annexation map to the City prior to the approval of the annexation Ordinance on 3rd reading – so that the City may record the annexation map as close to the publication of the Ordinance as possible. If the recordable annexation map is not provided to Staff prior to 3rd reading, Staff recommends the Governing Body **postpone** approval until the map is provided.

Through the review process, Staff has identified the following required corrections to the map"

1. The Legend symbol for "EXISTING CITY OF CHEYENNE LIMITS" does not appear on the map itself.

ANNEXATION REPORT & STAFF REPORT

Lot 4, Block 2, Swan Ranch Rail Park Third Filing Annexation

CASE NUMBER: UDC-19-00006 **SUBDIVISION CODE:** SWRP03
PREPARED BY: Tawn Hillenbrand
PUBLIC HEARING: February 11, 2019

OWNERS: Elsey Family Legacy Trust
5265 S Logan Dr.
Greenwood Village, CO 80121

AGENT: Bruce Perryman
AVI, PC
1103 Old Town Lane, Ste 101
Cheyenne, WY 82009

PROJECT: Lot 4, Block 2, Swan Ranch Rail Park Third Filing

DESCRIPTION: An annexation application for Lot 4, Block 2, Swan Ranch Rail Park Third Filing, Laramie County, Wyoming (located at the southwest corner of Tundra Drive and Clear Creek Parkway).

LOCATION:

1. Legal Description: Lot 4, Block 2, Swan Ranch Rail Park Third Filing
2. Location: Located at the southwest corner of Tundra Drive and Clear Creek Parkway.
3. Addresses: Unaddressed.

SIZE: 33.41 acres
CURRENT ZONING: County Swan Ranch PUD
PROPOSED ZONING: City Swan Ranch PUD
EXISTING USE: Vacant
PROPOSED USE: Industrial

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Vacant	Swan Ranch PUD	City
South	Vacant	Swan Ranch PUD	County
East	Agricultural, Office	Swan Ranch PUD	County
West	Railroad, Light Industrial	Swan Ranch PUD	County

EXECUTIVE SUMMARY:

This annexation application is for one (1) parcel of land at 33.41 acres located at the southwest corner of Tundra Drive and Clear Creek Parkway. This application was submitted along with a zone change application. The zone change application proposes changing the County Swan Ranch PUD and to City Swan Ranch PUD.

Although this land is located just outside the Urban Service Boundary, infrastructure improvements such as paved roads and utilities currently exist in this area. The land is designated Industrial on the Future Land Use Map. The future land uses anticipated in the Industrial category are best located with access to major transportation facilities, such as the interstate and railroad. Industrial areas are areas intended to provide jobs, services, and economic vitality. PlanCheyenne is supportive of annexing this land into the City.

As with any expansion there will be an impact on service provision within the City. However, as this is a moderately small expansion adjacent to current City Services, the impact on City services will be minor. The property is contiguous to current City limits to the north.

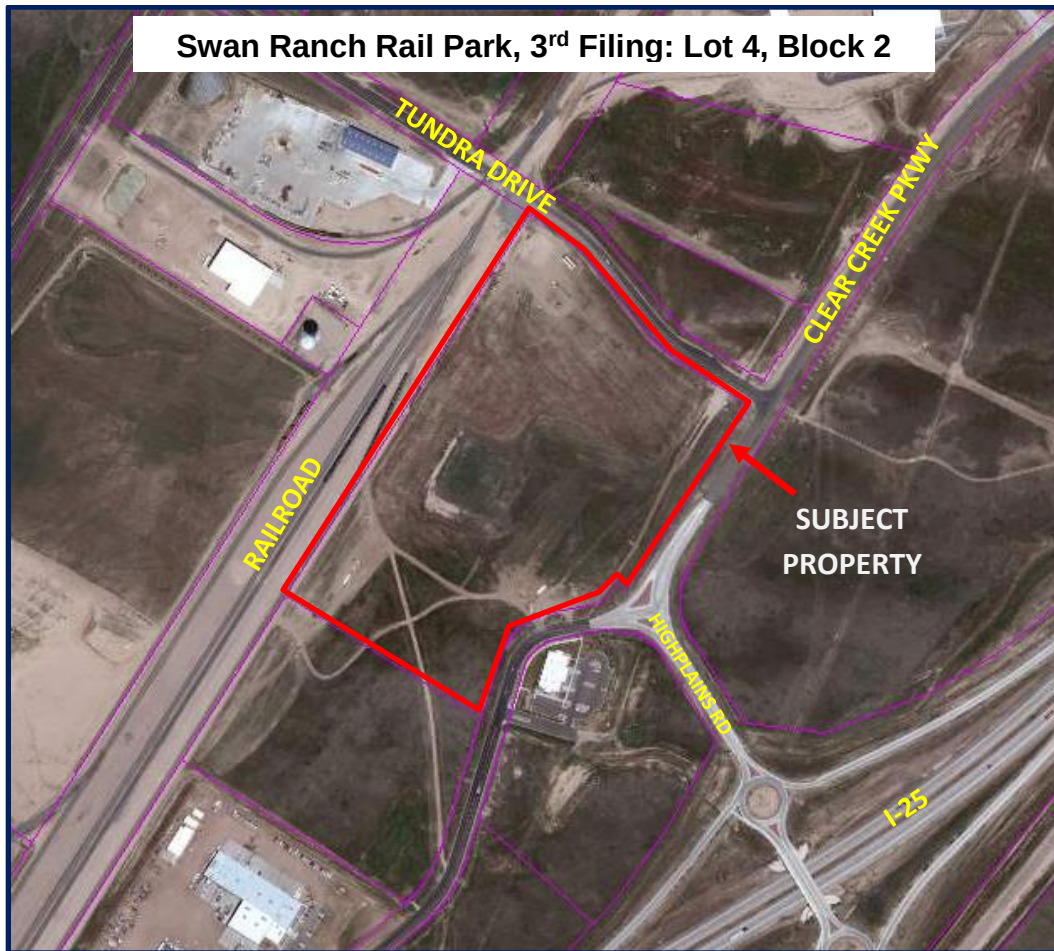
Due to meeting the review criteria found in Wyoming State 15-1-402, staff recommends approval of this annexation.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map
Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting the subject property located at the southwest corner of Tundra Drive and Clear Creek Parkway

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEW OF SUBJECT PROPERTY:



Photograph #1- Looking southeast across the property from Tundra Drive and the railroad tracks

Source-Development Office



Photograph #1- Looking due west across the property from near the intersection of Clear Creek Pkwy and High Plains Road.

Source-Development Office

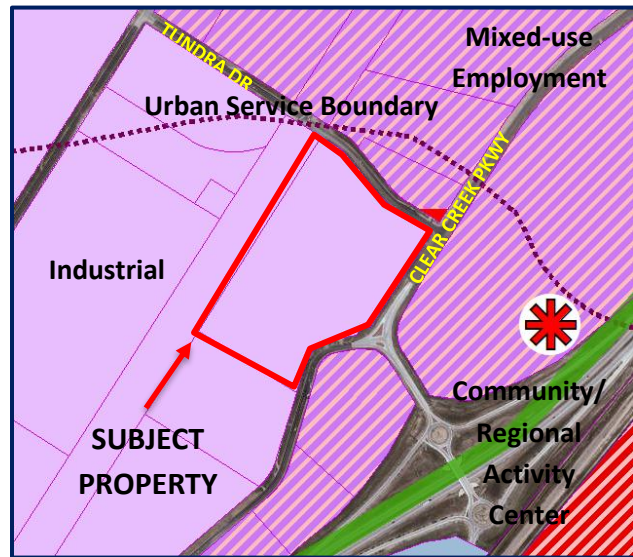
PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

This annexation is consistent with PlanCheyenne.

PlanCheyenne encourages the City to grow within the Urban Service Boundary and to maximize the use of existing infrastructure. Although this property is located just outside the Urban Service Boundary, infrastructure improvements such as paved roads and utilities currently exist in this area. Multiple adjacent properties have also been developed. Annexation of this property is appropriate. The change from a County zone district to a City zone district is encouraged to occur concurrently with the annexation to clarify standards, allowed uses, and to allow property improvements.

PlanCheyenne encourages future annexations to avoid the creation of new county pockets and to encourage the reduction of existing county pockets. This annexation does not create any new county pockets.

Future Land Use



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS Cooperative Program

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

COMMON WELFARE – *An annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town.*

The annexation of this property will increase the health, safety, and welfare of the community. Being within City limits will allow the property to access City sanitation services as well as City Fire and Police improving the overall welfare of the community.

PART OF THE CITY – *The urban development of the area sought to be annexed would be constituted a natural, geographic, economic, and social part of the annexing city or town.*

This property would constitute a natural, geographic, economic, and social part of the City. The adjacent properties to the north are within City boundaries. The property is located within less than a quarter mile of Interstate-25, a designated Highway Corridor on the Future Land Use map. The property is also located near a designated Community/Regional Activity Center on the Future Land Use map establishing this parcel as a natural economic and social part of the City.

SERVICE EXTENSION LOGICAL EXPANSION – *The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed.*

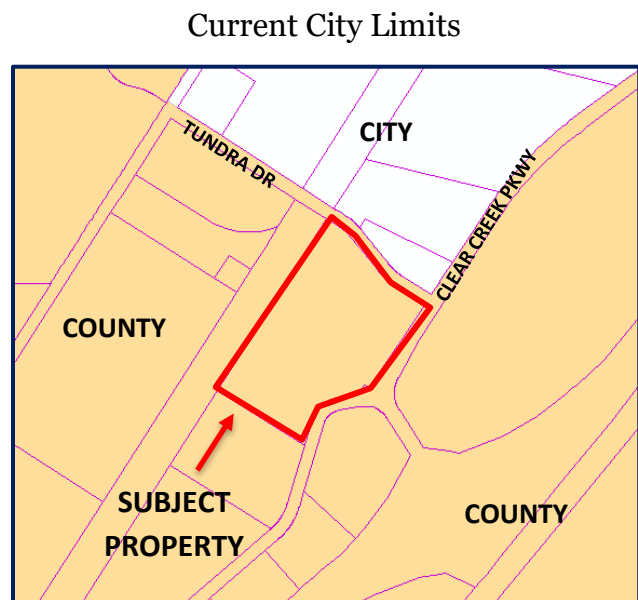
The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to property owners would also be available to this location. Police and fire protection will be extended upon annexation. Connection to City water and sewer lines is possible upon annexation and application to the Board of Public Utilities.

CONTIGUOUS – *The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407.*

The parcel proposed for annexation is approximately 20% contiguous to City limits. Contiguity is achieved along the northern edge of the proposed annexation area.

UTILITIES – *If the city or town does not own or operate its own electric utility, its governing body is prepared to issue franchises as necessary to service the annexed area pursuant to W.S. 15-1-4102.*

Utility franchises are in place to serve the annexed area.



Map #4 – Current City Limits
Source: Cheyenne/Laramie County GIS Cooperative Program

CERTIFIED MAILING – *The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405(a).*

A certified mailing was made to the required property owners and agencies on January 11, 2019. The earliest confirmation of receipt was dated January 14, 2019.

ANNEXATION REPORT DATA: In compliance with 15-1-402 (c) the following information is herein provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation of this vacant land is approximately \$0.00. Additional on- and off-site improvements may be required with subsequent development actions.

- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Police and Fire services will be provided immediately upon the recording of the annexation. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner. Development will require extension of water and sewer services, which are available to the subject property.
 - (iv) Fees for water, sewer, and sanitation services are a variable amount for residential and commercial units, based upon volume and meter size. Service costs will not be charged until development occurs.
 - (v) The current property tax mill levy imposed is 66.52 and projected property tax mill levy imposed by the city is 71.52.
 - (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.
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REVIEW

Agencies with comments:

City Surveyor: Jack Studley

- Boundary data and legal descriptions appear in order (FYI)
- (CORRECTION REQUIRED PRIOR TO FINAL APPROVAL) 2. The Legend symbol for "EXISTING CITY OF CHEYENNE LIMITS" does not appear on the map itself. This is required to be rectified on the final map submission.

Development: Tawn Hillenbrand

- Proposed Annexation pursued under WS 15-1-403 (land owner petition) (FYI).
- Land proposed to be annexed is contiguous to current City limits (north across Tundra Drive). (FYI)

Environmental Health Department: Roy Kroeger

- Laramie County Small Wastewater System Regulations - 201 Area Facility Management Plan. This property is in the 201 Area Facilities Management Plan and contiguous to corporate limits. The property shall utilize the public sewer system. (FYI)

Police Department: Brian Kozak

- Approved with the reminder that as the City grows the Police Department must be given the resources to meet the demand to service expanded areas. (FYI)

Urban Planning: Tawn Hillenbrand

- Although this property is located just outside the Urban Service Boundary, infrastructure improvements such as paved roads and utilities currently exist in this area. Multiple adjacent properties have also been developed. (FYI)

Reviewing agencies without comments:

Black Hills Corp: Kelly Linholm

Board of Public Utilities: Linda Gunter

Charter (formerly Optimum): Bryan VanKirk

City Engineer: Amy Allen

County Assessor: Clarice Blanton

County Planning: Nancy Trimble

Development: Susana Montana
Engineering – Drainage: Michael Vinson
Engineering – General: Molly Bennett
Engineering – Traffic: Anissa Gerard
GIS/Engineering/Addressing: Gary Stogsdill
Fire Department: Jim Schamerhorn
MPO: Nancy Olson
Urban Planning: Richard Zita

Reviewing agencies without response:

CenturyLink (formerly Qwest): Kimberly Hessel
CenturyLink (formerly Qwest): Darrin Klawon
County Attorney: Mark Voss
County Clerk: Laura Pate
County Fire Dist. 1: Aaron Fowler
County Public Works: Rob Geriner
County Sheriff's Office: Danny Click
Laramie County Conservation District: Jim Cochran
Parks and Recreation Admin: Sam Payne
Public Works: Vicki Nemecek
911/Combined Communications: Glen Crumpton
911/Combined Communications: Chuck Trimble

Other comments:

None

Encl: Annexation Map – submitted by applicant
 County Site Plan Certificate of Review and County approved Site/Landscape Plan – provided by
 County Planner
 Aerial Map – produced by City staff

Cc: Agent, Owner, File

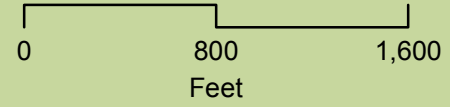
Precious Cat Annexation



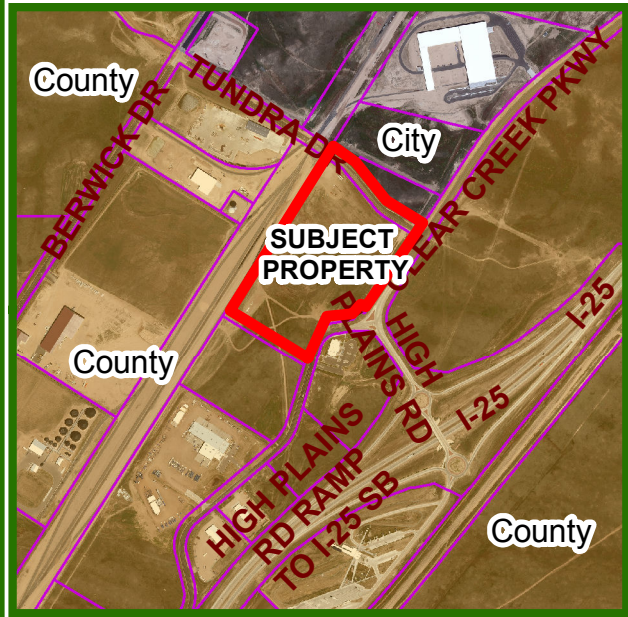
Application Number
Annexation
UDC-19-00006

Applicant: Chris Elsey
Elsey Family Legacy Trust
Agent: Bruce Perryman
AVI, PC

Scale applies to
above map only



City Limits



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use

